

SENATE No. 1928

The Commonwealth of Massachusetts

PRESENTED BY:

Michael D. Brady

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a municipal tax assessment increase limit.

PETITION OF:

NAME:

Michael D. Brady

DISTRICT/ADDRESS:

Second Plymouth and Norfolk

SENATE No. 1928

By Mr. Brady, a petition (accompanied by bill, Senate, No. 1928) of Michael D. Brady for legislation to establish a municipal tax assessment increase limit. Revenue.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1760 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a municipal tax assessment increase limit.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 21C of chapter 59 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by adding the following paragraph:-

3 (o) The local appropriating authority of any city or town may, by majority vote, seek
4 voter approval to limit the annual increase on the total taxes assessed on real property classified
5 as Class One, residential; provided, however, that the limit shall equal 3 per cent of the annual
6 increase or the percentage change in the Consumer Price Index published by the United States
7 Department of Labor, Bureau of Labor Statistics, for such year, whichever is lower, for the
8 principal residence of a taxpayer as defined in section 1 of chapter 188; provided further, that the
9 limit shall not exceed 10 per cent of the annual increase for said real property that is not the
10 principal residence of a taxpayer as defined in said section 1 of said chapter 188; and provided

further, that the total taxes assessed on said real property shall not exceed the rate based on the full and fair cash valuation of said property. The question submitted to the voters shall be worded as follows:-

“Shall the (city/town) of _____ be allowed to limit the annual increase on the total taxes assessed on real property classified as Class One, residential?

Yes ____ No ____.”

If a majority of the persons voting on the question shall vote “yes”, the local appropriating authority of the city or town shall be allowed to limit the annual increase on the total taxes assessed on real property classified as Class One, residential pursuant to this paragraph; provided, however, that any limits established under this paragraph shall apply automatically; provided further, that any limits established under this paragraph shall not apply to any increases in value to said real property resulting from improvements made by the taxpayer; provided further, that any limit established under this paragraph shall not apply in any fiscal year in which the real property is sold or otherwise transferred for consideration; and provided further, that should a taxpayer cease to reside or intend to reside in said real property as the taxpayer’s principal residence as defined in said section 1 of said chapter 188, the taxpayer shall notify the local assessor’s office within 30 days to avoid the assessment of any penalties or any other real estate obligations.